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File No: EXP202307914

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 10, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202307914

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: Ms. B.B.B., (...), (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 2, 2023. The reasons for the complaint are as follows:

The complainant states that on April 26, 2023, she found three documents published on the website <https://jodaractualidad.com> belonging to an administrative file held by the Jódar City Council. One of the documents ("Adjustment Plan") appears uploaded with the digital signature of ***position.1 of the Jódar City Council and ***position.2 municipal. Upon opening the document with Adobe Acrobat Reader and accessing the signature panel, it reveals both the full name of ***position.1 and that of ***position.2, along with their respective ID numbers.

And, she provides the following relevant documentation:

- Screenshot of the documents subject to the complaint and the link to the website where they have been published.

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SECOND: On June 9, 2023, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint filed by the complainant was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On June 21, 2023, the Data Inspection confirmed that, indeed, an article titled "****ARTICLE.1" was published on the website "jodaractualidad.com", which included a document titled "Adjustment Plan Update April 2023. Justifying Report" and a link for its download. It was verified that after downloading and through the "PDF" document reader Acrobat Reader, the signature panel displayed the personal data of the two signatories: Name, surname, and Tax Identification Number (NIF).

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At the request of the Data Inspection, the representative of the Jódar City Council provided a written statement in which she stated the following:

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The Jódar City Council processes its files through the application "esPublico GESTIONA", which has a record of access to the documentation. In this specific case, the approval of the ADJUSTMENT PLAN is carried out by the Plenary of the corporation, having been accessed by both the personnel of the entity assigned to the intervention department that manages it, as well as the members of the plenary,

but all within the aforementioned application.

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The application "esPublico GESTIONA" guarantees the security, integrity, and confidentiality of the documentation contained in the files so that only the responsible employees and the administrators have access to it, and it has an audit system to know who has accessed the file at any given moment and what actions have been performed on it.

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All personnel of the city council, upon taking office, take an oath or promise to fulfill the obligations of the position; furthermore, in adapting the entity to the National Security Framework and the Data Protection Regulation, specific training sessions were conducted for the workers. (They provide the Plan and the Training sessions).

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Regarding the website "jodaractualidad.com", on June 21, 2023, the Data Inspection carried out the following verifications:

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It contains a publication of an article titled "****ARTICLE.1", and includes a link to a document called "Adjustment Plan Update April 2023. Justifying Report". It is verified that after downloading and through the "PDF" document reader Acrobat Reader, the signature panel...

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The personal data of the two signatories of the document are recorded:

Name, surname, and NIF.

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The footer contains 3 links titled "Legal Notice," "Privacy Policy," and "Cookie Policy." All three links redirect to the same page titled "Data Protection." The identification of the data processing manager and the Data Protection Officer has not been located. The only contact method provided is the email address contacto@jodaractualidad.com.

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From IONOS Cloud S.L.U. (hereinafter IONOS), it is reported that the domain "jodaractualidad.com" was registered with IONOS on April 9, 2020, remaining with IONOS until June 1, 2023, by: A.A.A. NIF: ***NIF.1.

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On December 21, 2023, information was requested from A.A.A. regarding the reported facts, receiving a written response stating the following: <>.

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On September 28, 2023, information was requested from the domain company Openprovider SL regarding the identifying data of the domain "jodaractualidad.com," and on October 11, 2023, they responded indicating that "jodaractualidad.com" is registered with the company alcal.

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On October 17, 2023, a request was made to TiZoo Sál to inform about the ownership of the domain "jodaractualidad.com," indicating on November 3, 2023, that the owner of the domain is C.C.C..

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On November 6, 2023, information was requested from the current owner C.C.C. regarding the reported facts, receiving a written response on November 21, 2023, stating the following:

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Jódar Actualidad (jodaractualidad.com), since May 26, 2023, is owned by C.C.C.. Prior to that date, the website and domain were owned by A.A.A.. Since the date of the change of ownership of the domain of the news page/blog "Jódar actualidad," there has been no activity of publications.

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The article titled "****ARTICLE.1" was drafted and published on the day (...), by A.A.A..

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The published files were obtained from the electronic headquarters of the City Council of Jódar, which at the time were published on jodaractualidad.com, unaltered and unchanged, and are accessible at the link ***URL.1.

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These files have been removed from the publication of the news following the notification received from the AEPD. Along with the following note from

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draft: «By legal requirement of the AEPD dated November 7, 2023, the files related to the information of the adjustment plan, which were published at the time by the previous owner of this medium, are removed>>».

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Prior to this notification received on November 7, 2023, no communication regarding the publication of this news and/or the file(s) was received from any responsible party of the City Council or from the signatories of the document.

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The publication of said file unaltered on the news blog “Jódar actualidad” is a unique, isolated fact, and is considered an unintentional error: given that the source was reliable (the City Council itself), and given that the ID number was not perceived, nor is it visible (the ID number) in the signature stamps of both ladies.

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On January 24, 2024, the sub-inspector issued a report of prior actions in which it is stated that it has been verified:

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That the link provided by C.C.C. on November 21, 2023, allows access to the electronic headquarters of the City Council of Jódar and to download the document, but this link includes the Secure Verification Code (CSV), a code necessary to download the document in order to verify its authenticity. This code is printed on the document itself, which implies that, to download the document from the electronic headquarters of the city council, prior access to the document or the CSV has been obtained.

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That on January 23, 2024, the PDF document has been removed from the page “jodaractualidad.com.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

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Preliminary Issues

Article 4 of the GDPR states that:

For the purposes of this Regulation, the following shall be understood as:

1) “personal data”: any information relating to an identified or identifiable natural person (“the data subject”); an identifiable natural person is one whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;

In point 2 of the same article, the concept of “processing” of personal data is defined.

2) “processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;

In Article 4 of the GDPR, point 7 specifies what is to be understood by the data controller. Thus, we have:

“7) ‘data controller’ or ‘controller’ means the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;

In this case, the publication of personal data on the day (...) on the website jodaractualidad.com will be analyzed, with the party being claimed being responsible for such processing.

III

Unfulfilled Obligation

Article 5 of the GDPR establishes that: “1. Personal data shall be:

(...) ”

“c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);

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(...) ”

2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it (‘accountability’).

The publication of personal information constitutes processing of personal data and as such must respect the principles of data protection, in particular, the principle of data minimization which requires that processing operations are not carried out unless absolutely necessary for a specific purpose.

In this case, the party being claimed published on the website “jodaractualidad.com”, on the date (...), an article titled “***ARTICLE.1” which included a document titled “Update Adjustment Plan April 2023. Justification Report” and a link for its download.

After downloading and through the “PDF” document reader Acrobat Reader, the signature panel shows the following personal data of the two signatories of the document (**position.1 of the Jódar City Council and ***position.2 municipal): name, surname, and NIF. The latter being a piece of personal data that is neither adequate, nor relevant, nor limited to what is necessary in relation to the purposes pursued by the party being claimed.

The fact that the source of the information was the electronic headquarters of the Jódar City Council does not exempt the party being claimed from its responsibility, because what is the subject of this sanctioning procedure is the processing for which the party being claimed is responsible, such as the

dissemination of the personal data of the NIFs of the signatories of the document published on the website "jodaractualidad.com".

In short, before publishing the document on the web, the party being claimed should have removed the Secure Verification Code (CSV) and used means to ensure that the NIF could not be seen.

In accordance with the evidence available at this procedural moment and without prejudice to what results from the instruction of the procedure, it is estimated that the conduct of the party being claimed could violate Article 5.1 c) of the GDPR and could constitute the infringement classified in Article 83.5 a) of the aforementioned Regulation 2016/679.

IV

Classification and Qualification of the Infringement

The infringement is classified in Article 83.5 of the GDPR, which considers as such:

"5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

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The LOPDGD, for the purposes of the prescription of the infringement, qualifies in its Article 72.1 as a very serious infringement, with a prescription period of three years in this case:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

V

Proposal for Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive."

"Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied in accordance with Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under

Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

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Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the behavior of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having a data protection officer when not mandatory.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

For the purpose of setting the amount of the sanction to be imposed in this case on the party claimed for an infringement classified in Article 83.5 of the GDPR, an initial assessment leads to the conclusion that the sanction to be imposed on the claimed party should be set at the amount of €300 in accordance with Article 58.2 of the GDPR.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

VI

Adoption of Measures

If the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act in accordance with Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In light of the above, depending on the outcome of the instruction, the claimed party may be ordered to carry out the actions within the designated timeframe.

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necessary for the processing of personal data used to comply with the provisions of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO INITIATE SANCTIONING PROCEEDINGS against Mr. A.A.A. with NIF ***NIF.1, for the alleged infringement of article 5.1 c) of the GDPR, classified in article 83.5 a) of the aforementioned GDPR.

SECOND: TO APPOINT Mr. D.D.D. as instructor and Ms. E.E.E. as secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainants and their documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, as well as the report of prior inspection actions.

FOURTH: THAT for the purposes provided in art. 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 300 euros (three hundred euros) for the infringement of article 5.1 c) of the GDPR, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to Mr. A.A.A. with NIF ***NIF.1, granting him a hearing period of ten business days to submit any allegations and present any evidence he deems appropriate. In his written allegations, he must provide his NIF and the procedure number indicated in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of article 85 of the LPACAP, he may acknowledge his responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 240 euros, resolving the procedure with the imposition of this sanction.

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In the same way, at any time prior to the resolution of this procedure, the voluntary payment of the proposed sanction may be made, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 240 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 180 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (240 euros or 180 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The sanctioning procedure will have a maximum duration of twelve months from the date of the agreement to initiate or, where appropriate, from the draft agreement to initiate. After this period, it will

expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On April 13, 2024, the respondent has proceeded to pay the sanction in the amount of 180 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction and another of a non-pecuniary nature can be imposed but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the

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The competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202307914, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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